

Aftab Alam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 December 2023 · 2023:AHC:239075-DB · Writ - C No. 38972 of 2023 · **Authority to consider the connection application within four weeks after hearing stakeholders.**

HEADNOTE

A tenant's application for electricity cannot be refused merely because the landlord withholds consent. Clause 4.4 of the Electricity Supply Code, 2005, read with Annexures 4.2 and 4.3, requires either the owner's consent letter or an indemnity bond from the lessee, tenant or occupier. The writ was disposed of by directing the competent authority to consider the petitioner's application, if still undecided, in accordance with law within four weeks after hearing persons having a stake.

FACTUAL SUMMARY

Aftab Alam claims to be tenant, since 1977, of a jewellery shop of respondent Nos. 4 to 7. When they refused rent he deposited it in court from 12 December 2020 (Misc. Suit No. 263 of 2020) and sued for a permanent injunction (Original Suit No. 1217 of 2020 before the Civil Judge (Junior Division), Bhadohi-Gyanpur). They disconnected the shop supply. He applied as a tenant for a new connection; a meter was installed on 21 September 2023, but supply did not start. He sought a mandamus to energeise that connection.

REUSABLE CONSTRUCTIONS

1. A tenant or occupier seeking a new connection is not refused merely for want of the landlord's consent. Clause 4.4 of the Electricity Supply Code, 2005, read with Annexures 4.2 and 4.3, is met by the owner's consent letter or, if that is refused, by the applicant's indemnity bond. ¶ 4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant connection without landlord consent

HOLDING

Clause 4.4 of the Electricity Supply Code, 2005, read with Annexure 4.2 and Annexure 4.3, provides for a consent letter of the owner or, in its absence, an indemnity bond by the lessee, tenant or occupier. Following *Seema Mansoor*, the licensee cannot refuse supply merely for want of the landlord's consent where that bond is furnished. The competent authority must consider the petitioner's application, if not already decided, in accordance with law within four weeks, after hearing the persons who have a stake. ¶ 4

PRINCIPLE TAGS

UP-2005::4.4 The Bench treated a tenant's new-connection application as one that must be considered under Clause 4.4 read with Annexures 4.2 and 4.3, by owner's consent or an indemnity bond, and cannot be refused only because the landlord has not consented. Lead authorities: *Seema Mansoor vs. U.P. Power Corporation Ltd. and others*. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SUPPLY MUST BE STARTED ON THE METER INSTALLED ON 21 SEPTEMBER 2023, OR THE CONNECTION APPLICATION ALLOWED

No mandamus to supply was issued. The competent authority is to decide the application, if still pending, in accordance with law within four weeks after hearing stakeholders. ¶ 4

NOT DECIDED — THE LANDLORD-TENANT DISPUTE OVER RENT AND POSSESSION

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor vs. U.P. Power Corporation Ltd. and others</i> Writ C No. 28295 of 2014 High Court of Judicature at Allahabad			4	followed

SCJ-3612 · Aftab Alam v. State of U.P. · 2023:AHC:239075-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.